

HIGH COURT LEGAL SERVICES COMMITTEE, KALABURAGI

BEFORE THE LOK-ADALAT

IN THE HIGH COURT OF KARNATAKA

KALABURAGI BENCH

DATED THIS THE 13TH DAY OF DECEMBER, 2025

CONCILIATORS PRESENT

THE HON'BLE MRS. JUSTICE P. SREE SUDHA

AND

SMT. CHANDRAKALA, MEMBER

M.F.A. NO.202000/2023(MV)

Lok Adalat No.876/2025

BETWEEN

MAHADEVI W/O DAMU CHAVAN,
AGE: 46 YEARS, OCC: COOLIE,
NOW NIL, R/O KOLLUR TANDA,
TQ. AFZALPUR, DIST:KALABURAGI,
NOW AT LADLAPUR, TQ.CHITTAPUR,
DIST. KALABURAGI.

...APPELLANT

(BY SRI SANJEEV PATIL, ADVOCATE)

AND

1. EARANNA S/O SHARABANNA BIRADAR,
AGE: MAJOR, OCC: OWNER OF MOTORCYCLE
NO.KA-32/EK-9924, R/O HIRAPUR,
TQ. AND DIST:KALABURAGI-585105.

2. THE TATA AIG GEN INS CO. LTD.,
 PENINSULA BUSINESS PARK,
 TOWER-A, 15TH FLOOR, G.K. MARG,
 LOWER PAREL, MUMBAI-400013,
 THROUGH ITS DIVISIONAL MANAGER,
 HALL MARK BUILDING, 3RD FLOOR,
 DESAI CROSS, HUBLI-580029,
 POLICY NO.0189941106/00000/00
 w.e.f. 06.01.2019 to 05.01.2020

...RESPONDENTS

(NOTICE TO R1 IS DISPENSED WITH;
 BY SRI SUBHASH MALLAPUR, ADVOCATE FOR R2)

THIS MFA FILED U/S. 173(1) OF MV ACT, PRAYING TO A) EXERCISE ITS APPELLATE JURISDICTION, CALL FOR THE ENTIRE LOWER COURT RECORDS AND MODIFY THE JUDGEMENT AND AWARD DATED 05.08.2022 PASSED BY THE LEARNED SENIOR CIVIL JUDGE AND MACT AT CHITTAPUR IN MVC NO.949/2020 BY ENHANCING THE COMPENSATION AMOUNT AS PRAYED FOR, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS APPEAL COMING ON FOR CONCILIATION BEFORE LOK ADALAT, THIS DAY, THE FOLLOWING ORDER IS PASSED:

CONCILIATION ORDER

The learned counsel for the Appellant/Claimant and the representative of Respondent-Insurance Company along with its counsel are present.

2. After prolonged negotiations, the matter is settled. The Appellant/Claimant has agreed to receive and the Respondent-Insurance Company has agreed to pay a lump-sum of

compensation of Rs.60,000/- (Rupees Sixty Thousand only), in addition to what has been awarded by the Tribunal, in full and final settlement of the claim. A joint Memo is filed on behalf of the parties to this effect. Same is accepted.

3. The entire amount shall be released in favour of the Claimant.

4. The Respondent-Insurance Company has agreed to deposit the said amount before the Tribunal within six weeks from the date of preparation of Award, failing which the said amount shall carry interest at the rate of 9% p.a. from the date of default, till the date of deposit.

5. The Miscellaneous First Appeal stands disposed of in terms of the Joint Memo. The award of the Tribunal shall stand modified accordingly. Draw up the award accordingly.

**Sd/-
JUDGE**

**Sd/-
MEMBER**

LG, SBS